Spirit Rock Teacher Code of Ethics

The Spirit Rock teachers recognize that the foundation of spiritual life rests upon our mindful and caring relationship to the life around us. We acknowledge that without the support of monastic vows and Asian customs, we have a need for clear Western guidelines. In keeping with this understanding, and for the long-term benefit of ourselves and the community at large, we as lay teachers agree to uphold the five lay training precepts. Furthermore, we have specifically expanded the scope of these five precepts to make them explicitly appropriate to our role as teachers of the Dharma in our specific cultural setting. The Spirit Rock teachers have thus agreed to the following guidelines:

1) We undertake the precept of refraining from killing.
In undertaking this precept, we acknowledge the interconnection of all beings and our respect for all life. We agree to refine our understanding of not killing and being non-harming in all our actions. We seek to understand the implication of this precept in such difficult areas as abortion, euthanasia, and the killing of pets. While some of us recommend vegetarianism and others do not, we all commit ourselves to fulfilling this precept in the spirit of reverence for life.

2) We undertake the precept of refraining from stealing.
We agree to not take that which does not belong to us and to respect the property of others. We agree to bring consciousness to the use of all of the earth's resources in a respectful and ecological way. We agree to be honest in our dealings with money and not to misappropriate money committed to Dharma projects. We agree to offer teachings without favoritism in regard to students' financial circumstances.

3) We undertake the precept of refraining from false speech.
We agree to speak that which is true and useful and to refrain from gossip in our community. We agree to hold in confidence what is explicitly told to us in confidence. We agree to cultivate conscious and clear communication, and to cultivate the quality of lovingkindness and honesty as the basis of our speech.

4) We undertake the precept of refraining from sexual misconduct.
We agree to avoid creating harm through sexuality and to avoid sexual exploitation or relationships of a sexual manner that are outside of the bounds of the relationship commitments we have made to another, or that involve another who has made vows to another. Teachers with vows of celibacy will live according to their vows. Teachers in committed relationships will honor their vows and refrain from adultery. All teachers agree not to use their teaching role to exploit their authority and position in order to assume a sexual relationship with a student.

Because several single teachers in our community have developed partnerships and marriages with former students, we acknowledge that such a healthy relationship can be possible, but also that great care and sensitivity are needed. We agree that in this case the following guidelines are crucial.

a) A sexual relationship is never appropriate between teachers and students.

b) During retreats or formal teaching, any intimation of future student-teacher romantic or sexual relationship is inappropriate.

c) If interest in a genuine and committed relationship develops over time between a single teacher and a student, the student-teacher relationship must clearly and consciously have ended before any further development toward a romantic relationship. Such a relationship must be approached with restraint and sensitivity; in no case should it occur immediately after retreat. A minimum time period of three months or longer should have passed from the last formal teaching between them, and a clear understanding from both parties that the student-teacher relationship has ended must be coupled with a conscious commitment to enter into a relationship that brings no harm to either party.

5) We undertake the precept of refraining from intoxicants that cause heedlessness or loss of awareness.

It is clear that substance abuse is the cause of tremendous suffering. We agree that there should be no use of intoxicants during retreats or while on retreat premises. We agree not to abuse or misuse intoxicants at any time. We agree that if any teacher has a drug or alcohol addiction problem, it should be immediately addressed by the community.

Ethics and Reconciliation Council: Spirit Rock Meditation Center

Buddhist ethics provides a foundation for the practice and community life of Spirit Rock. As a lay community, we are guided by the five training precepts of avoiding killing, taking what is not given, sexual misconduct, false speech, and intoxication. These five are the basis for the **Spirit Rock's Teacher Code of Ethics.** An important part of ethics is a commitment to finding wise ways to work with conflict. In times of serious conflict, we have relied on the example and experience of the Buddhist tradition of monastic council for developing our own ways of resolving conflict.

Conflicts will inevitably arise within the Spirit Rock community. The health of our community is not measured by the presence or absence of conflict as much as by our willingness to find effective, responsible, and compassionate means of resolving interpersonal tensions. The intention to attend to and learn from conflict is a clear application of Buddhist practice into our daily lives; without this intention, practice can too easily be a comfort rather than a deep transformative vehicle for our lives.

Buddhist conflict resolution is not based on good or bad, blame or guilt, winning or losing, offenders or victims. Rather, it is based on fully addressing the suffering of all concerned. Hurt, fear, and anger are taken seriously through forums in which everyone may speak honestly, safely, and completely about their own direct experiences and feelings. In looking for resolution, Buddhist practice values dialogue over silence, reconciliation over estrangement, forgiveness over resentment, confession over accusation, and atonement over punishment. Because the process of reaching such resolution is often very difficult, Spirit Rock's Ethics and Reconciliation Council (EAR Council) offers support.

The EAR Council is a group of seven Spirit Rock practitioners, widely respected for their integrity, who are available to any community member who wants help in dealing with conflicts and grievances within the Spirit Rock community (except for employee/personnel-related conflicts). The members of the Council are appointed by the Spirit Rock Board in close consultation with the Spirit Rock teachers and staff. The EAR Council is comprised of at least one teacher, one board member, one staff member, and one general community member.

The primary role of the EAR Council is to provide initial, confidential consultation to anyone with ethical concerns. As such, the Council may, on request, function as a simple sounding board for one's concerns, as a source of questions to facilitate deeper personal reflection, or as a source of advice in how best to resolve the conflict. In addition, Council members are available to be mediators or witnesses for discussion between parties in conflict.

However, the EAR Council is available to oversee the implementation of a formal grievance procedure for such grievances, complaints, and conflicts that cannot be resolved through dialogue, mediation, and reconciliation. This involves setting up a Grievance Council that investigates and decides on specific issues submitted by members of the community.

Because many situations requiring a formal grievance procedure contain elements of interpersonal conflict, a formal grievance process may not be effective in resolving those issues. If such resolution is desired, other procedures—such as mediation—are recommended.

GRIEVANCE PROCESS

An important function of the EAR Council is to encourage an intention of mutual respect and reconciliation whenever conflict arises within our community. In the rare occasion that a more formal process may be necessary, the following process is available.

1. Bringing a Concern

A formal grievance process is initiated by communicating in writing with the EAR Council. This "letter of request" must include:

- A clear statement that a formal grievance process is requested
- The name of the person(s) whose behavior the complaint concerns
- A description of the alleged behavior sufficient enough to allow the EAR Council to decide whether the complaint is appropriate for initiating a formal grievance procedure
- A history of the attempts, if any, to resolve the complaint through other means
- A general statement about the resolution desired

2. Accepting the Concern

Once the EAR Council has accepted a request, it must convey its acceptance within two weeks to both the party filing the complaint and the party named in the complaint. As part of this notification, the Council will state its understanding of the issue under inquiry and will distribute a copy of the original "letter of request" to the party named in the complaint.

3. Forming a Grievance Council

Once a complaint is accepted, the EAR Council selects three of its members to constitute a Grievance Council. In keeping with the tradition of monastic council, this council will investigate, issue findings, and render a decision on the complaint. The EAR Council will also appoint one of its members to be the moderator of the Grievance Council. This moderator guides the procedures but does not participate in any decisions.

4. Investigating the Concern

The moderator schedules closed hearings in which all parties are given a chance to present their understanding of the issue under investigation. The Grievance Council may question all parties and may request additional information. The moderator will document the proceedings.

The Grievance Council may ask other people to provide information pertinent to the complaint. All parties will have a full and fair opportunity to respond to all information—oral, written, or otherwise—gathered by the Grievance Council.

Except for informing the EAR Council and appropriate community leaders, the proceedings will be held confidentially for the duration of the proceedings.

5. Grievance Council Findings

When the Grievance Council members are satisfied that they are adequately informed, they will review and discuss the case among themselves. At its discretion, the Grievance Council may seek non-binding advice from any other source. The Grievance Council's decision should be reached by consensus. Within two weeks of a decision, all parties will reconvene, at which time the Grievance Council will distribute copies of its written findings and read them aloud. For matters involving the potential suspension of a Spirit Rock teacher, the Grievance Council will consult with the Spirit Rock Teachers Council in jointly establishing the best course of action.